

4-951. Petition to expunge arrest records and public records; identity theft.

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF Sierra

Seventh JUDICIAL DISTRICT COURT

In re Maria-Alejandra O'Shaughnessy-Whitfield,

No.

Petitioner.

**PETITION TO EXPUNGE ARREST RECORDS AND PUBLIC RECORDS UNDER
NMSA 1978, SECTION 29-3A-3 [~~NMSA 1978~~]
(Identity Theft)**

Petitioner, [] unrepresented by counsel/[] represented by counsel (*select one*), under NMSA 1978, Section 29-3A-3 [~~NMSA 1978~~], respectfully moves the Court to expunge the arrest records and public records related to the cases/charges below.

1. Information about Petitioner:

Date of Birth: 1961-12-31

Current Mailing Address: 1188 Upper Notch Crossing Rd Apt 14B

City: Truth or Consequences State: NM Zip Code: 87901

Home Phone #: _____ Work Phone #: _____ Cell #: _____

Other names or aliases by which Petitioner has been known (*include prior names, nicknames, or aliases, especially if your arrest records may reflect a different name*):

2. [] Petitioner has no pending expungement cases in the Seventh Judicial District.

[] Petitioner has the following pending expungement cases in the Seventh Judicial District Court (*provide expungement case numbers for any expungement cases that may be currently pending before the Seventh Judicial District Court*):

3. [] Petitioner has never applied for expungement and been denied.

☐ Petitioner has applied for expungement and been denied in the following expungement cases (*provide the expungement case numbers*): _____

4. As the result of identity theft, Petitioner has been improperly named in the following criminal case or cases:

Case name: _____

Case number: D-721-CR-2014-00118

Date of filing: _____

Please attach copies of any records in your possession associated with this case.

5. The following appellate court cases(s) are related to Petitioner's Petition to Expunge:

Court of Appeals case number(s): _____

Supreme Court case number(s): _____

~~5.~~ 6. Petitioner asks this Court for an Order to Expunge Arrest and Criminal Records for information in the custody of the following agencies:

☐ District Court in the Seventh Judicial District;

☐ _____ County Sheriff's Department;

☐ District Attorney for the _____ Judicial District;

☐ New Mexico Department of Public Safety;

☐ Law Enforcement Agency (*name of agency*) _____;

☐ Metropolitan/Magistrate/Municipal Court in _____ (*location*);

☐ New Mexico State Police Investigations Bureau;

☐ Other _____.

~~6.~~ 7. The charges sought to be expunged were originally disposed of or originated in (*select one*)

☐ District Court in the Seventh Judicial District

☐ Metropolitan Court in _____ (*location*)

☐ Magistrate Court in _____ (*location*)

☐ Municipal Court in _____ (*location*)

~~7.~~ 8. ☐ Petitioner wishes to attend any hearings in this matter by telephonic or other electronic means as provided for in Rule 1-077.1(J) NMRA.

SIGNATURE SECTION

I, Petitioner, affirm under penalty of perjury under the laws of the State of New Mexico that the statements herein are true and correct.

Maria-Alejandra O'Shaughnessy-Whitfield

Printed name of Petitioner

Date

**CIVIL FORMS
4-951**

**Supreme Court Approved
October 31, 2025**

1	Signature of Petitioner	
2	_____	
3	Mailing Address	
4	_____	
5	Telephone Number	Email
6		
7	_____	
8	Attorney Name (<i>if applicable</i>)	Date
9	_____	
10	Attorney Signature	
11	_____	
12	Mailing Address	
13	_____	
14	Telephone Number	Email
15		
16	[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases pending	
17	or filed on or after January 28, 2022; <u>provisionally adopted form approved as amended by</u>	
18	<u>Supreme Court Order No. S-1-RCR-2024-00099, effective for all cases filed on or after</u>	
19	<u>December 31, 2025.</u>]	

4-960.1. Notice of hearing.

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF Sierra

Seventh JUDICIAL DISTRICT COURT

In re Maria-Alejandra O'Shaughnessy-Whitfield, Petitioner. No.

NOTICE OF HEARING

Petitioner may be entitled to expungement of arrest records or public records under the Criminal Record Expungement Act, Sections 29-3A-1 to -9 NMSA 1978. A hearing in this matter is set before the Honorable _____ as follows:

1. Date of Hearing: _____
2. Time of Hearing: _____
3. Length of Hearing: _____
4. Place of Hearing: _____

5. Matter(s) to be heard: _____

HONORABLE _____

By _____

TCAA

PARTIES ENTITLED TO NOTICE:

Maria-Alejandra O'Shaughnessy-Whitfield

Petitioner Name

Petitioner Address

Petitioner Telephone Number

Petitioner Email Address

Name

Agency (if applicable)

Address

Telephone Number

Email Address

Name

Agency (if applicable)

Address

Telephone Number

Email Address

Name

Agency (if applicable)

Address

Telephone Number

Email Address

Name

Agency (if applicable)

Address

Telephone Number

Email Address

USE NOTES

For the purpose of this form, the parties entitled to notice include the petitioner and any party that filed and served objections to the petition for expungement pursuant to Rule 1-077.1(G)(1) NMRA no later than sixty-three (63) days from the date of service. See Rule 1-077.1(G)(1) (providing sixty (60) days for a party entitled to notice to file an objection); Rule 1-077.1(E)(3) NMRA (providing for service by mail for actions filed pursuant to Rule 1-077.1); Rule 1-006(C) (providing for three (3) additional days where service is made by mail).

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases filed or pending on or after January 28, 2022.]

STATE OF NEW MEXICO
COUNTY OF Sierra
Seventh JUDICIAL DISTRICT COURT

In re Maria-Alejandra O'Shaughnessy-Whitfield,

No.

Petitioner.

**ORDER ON PETITION TO EXPUNGE ARREST RECORDS AND
PUBLIC RECORDS PURSUANT TO NMSA 1978, SECTION 29-3A-3 (*Identity Theft*)**

THIS MATTER came before the Court on Petitioner's Petition to Expunge Arrest Records and Public Records Pursuant to NMSA 1978, Section 29-3A-3 (2019) (*Identity Theft*). The Court having reviewed the Petition, examined the record, considered any objections filed by the District Attorney, the Department of Public Safety (DPS), the law enforcement agency that made the arrest, and any other person or agency, and conducted a hearing, **FINDS and ORDERS** as follows:

(Check all that apply)

1. ☐ Petitioner was the victim of identity theft.
2. ☐ Petitioner's request is denied for all charges sought to be expunged.¹

OR

☐ Petitioner's request to expunge is denied for the following charges:²

¹ For use when the Petition is denied in whole.

² For use when Petition will be granted in part, and denied in part.

3. Petitioner is not entitled to relief under Section 29-3A-3 because:³

- ☐ Petitioner has failed to provide the required information and the Petition is summarily dismissed WITHOUT PREJUDICE.
- ☐ Petitioner's records are not legally eligible for expungement because Petitioner was not the victim of identity theft and was not wrongfully identified in arrest records or public records.
- ☐ Venue is improper because the charges did not originate in this district.
- ☐ Other:

4. ☐ Petitioner's request to expunge is granted for all charges requested.⁴

OR

☐ Petitioner's request to expunge is granted only for the following charges: ⁵

(Select from the following, as applicable)

IT IS THEREFORE ORDERED that Petitioner's Petition to Expunge Arrest Records and Public Records Pursuant to Section 29-3A-3 is:

☐ **DENIED.**

☐ **GRANTED.**

☐ **GRANTED IN PART AND DENIED IN PART.**

³ To be completed when any portion of the Petition is denied.

⁴ For use when the Petition will be granted in whole.

⁵ For use when the Petition will be granted in part and denied in part.

(Select as applicable for Petitions granted in whole or in part)

☐ **IT IS FURTHER ORDERED** that, in accordance with Section 29-3A-3, the arrest records and public records specifically relating to:

☐ All the charges requested in the Petition;

☐ The following charges:

And contained in:

District Court case number: _____

Appellate Court case number: _____

Magistrate/Municipal Court case number: _____

Metropolitan Court case number: _____

Law Enforcement Agency case number: _____

Arrest number (from fingerprint card): _____ Date: _____

Including information posted on a court or law enforcement website,

SHALL BE EXPUNGED.

☐ **IT IS FURTHER ORDERED** that the following agencies shall expunge the necessary records within _____ days of the date of this Order, the proceedings shall be treated as if they never occurred, and upon inquiry in the matter, Petitioner and officials to whom this Order is directed may properly reply that no such records exist with respect to such person.

☐ District Attorney for the _____ district

☐ New Mexico Department of Public Safety

☐ Arresting agency _____

☐ Other: _____

☐ Other: _____

☐ Other: _____

☐ **IT IS FURTHER ORDERED** that the court clerk for the (*indicate the court that originally disposed of the charges*) ☐ District Court for the _____ Judicial District, ☐ Metropolitan Court in _____ (*location*), ☐ Magistrate Court in _____ (*location*), or ☐ Municipal Court in _____ (*location*) shall expunge the necessary records within _____ days of the date of this Order, the proceedings shall be treated as if they never occurred, and upon inquiry in the matter, Petitioner and officials to whom this Order is directed may properly reply that no such records exist with respect to such person.

(*For use when the correct offender was provided notice of the hearing on the Petition to expunge.*)

☐ **IT IS FURTHER ORDERED** that this Order grants expungement as a result of identity theft, and the arrest records and public records shall be corrected to reflect the following name and contact information of the correct offender pursuant to Section 29-3A-3(D):

Name of actual offender: _____

Contact information: _____

Date: _____

District Court Judge

4-222. Application for free process and affidavit of indigency.

[For use with Supreme Court General Rule 23-114 NMRA]

STATE OF NEW MEXICO
COUNTY OF Sierra
SIXTH JUDICIAL DISTRICT COURT

Maria-Alejandra O'Shaughnessy-Whitfield, Petitioner,

v.

No. D- _____ - _____ - _____

_____, Respondent.

APPLICATION FOR FREE PROCESS AND AFFIDAVIT OF INDIGENCY

I request that the court enter an order permitting me to file this case without prepayment of fees and costs and give upon my oath or affirmation the following statement.

My marital status is: Single ☐ Married ☐ Divorced ☐ Separated ☐ Widowed ☐

I request interpretation services: ☐ yes ☐ no (If yes, please describe what you need)

INFORMATION ABOUT MY FINANCES (check all that apply to you and fill in the blanks):

A. PUBLIC ASSISTANCE

☐ I do not receive public assistance (If you check this blank, go directly to Section B EMPLOYMENT/UNEMPLOYMENT).

☐ I currently receive the following public assistance in _____ County (please check all applicable public assistance programs): ☐ Temporary Assistance for Needy Families (TANF)

☐ Food Stamps

☐ Medicaid (for myself)

☐ General Assistance (GA)

☐ Supplemental Security Income (SSI)

☐ Public Housing

☐ Disability Security Income (DSI)

☐ Department of Health Case Management Services (DHMS)

☐ Other (please describe _____)

B. EMPLOYMENT/UNEMPLOYMENT

☐ I am currently unemployed and have been unemployed for ____ months in the past year. I am unemployed because _____.

☐ I receive unemployment benefits in the amount of \$ _____ per month.

☐ I have no income because I am unemployed.

☐ I am employed. I am paid \$ _____ per hour and work ____ hours per week. My employer's name, address and phone number is:

☐ I am married, and my spouse is unemployed and has been unemployed for ____ months in the past year because _____.

☐ My spouse receives unemployment benefits in the amount of \$ _____ per month.

☐ I am married, and my spouse is employed. My spouse is paid \$ _____ per hour and works ____ hours per week.

My spouse's employer's name, address and phone number is:

C. OTHER SOURCES OF INCOME *(Check all that apply)*

☐ I have income from another source not mentioned above.

☐ Child Support \$ _____

☐ Alimony \$ _____

☐ Investments \$ _____

☐ Community property from my spouse \$ _____

☐ Other _____ \$ _____

☐ I do not have any other sources of income.

☐ I am married, and my spouse has income from another source not mentioned above.

☐ Child Support \$ _____

☐ Alimony \$ _____

☐ Investments \$ _____

☐ Other _____ \$ _____

☐ Other _____ \$ _____

☐ I am married, and my spouse does not have any other sources of income.

☐ Another adult contributes to household income in the following amount: \$ _____

D. OTHER ASSETS (Please list other assets owned by you or your spouse that can be turned into cash. Do not include money you have in retirement accounts):

Cash on hand \$ _____
Bank accounts \$ _____
Income tax refund \$ _____
Other assets (describe below):
_____ \$ _____
_____ \$ _____

IF YOU DO NOT HAVE ACCESS TO YOUR OWN OR YOUR SPOUSE'S INCOME OR ASSETS, EXPLAIN WHY.

E. MONTHLY EXPENSES

House Payment/Rent \$ _____
Utilities \$ _____
Telephone \$ _____
Groceries (after food stamps) \$ _____
Car Payment(s) \$ _____
Gasoline \$ _____
Insurance \$ _____
Child Care \$ _____
Student and Consumer Loans \$ _____
Court-ordered family support obligations \$ _____
Other court-ordered payments \$ _____
Medical expenses \$ _____
Other _____ \$ _____

F. HOUSEHOLD

I live at _____,

and the head of the household is _____.

Other than myself, the other members of the household are:

<u>Name</u>	<u>Age</u>	<u>Employment</u>	<u>I Support</u>
_____	_____	_____	☐
_____	_____	_____	☐
_____	_____	_____	☐

IF YOU ARE REPRESENTED BY AN ATTORNEY, YOUR ATTORNEY MUST SIGN THE FOLLOWING CERTIFICATE.

I, _____, hereby certify that I have not received any attorney
(Name of attorney)
fee to represent _____. If any attorney fee is paid to me, I understand
(Name of applicant) that I shall pay to the court clerk from such
attorney fee any court fees and costs that may be waived by the court.

(Attorney signature)

Address

City, State, Zip Code

Telephone/Fax Number

[Adopted by Supreme Court Order No. 07-8300-043, effective February 25, 2008; as amended by Supreme Court Order No. 08-8300-031, effective November 17, 2008; by Supreme Court Order No. 10-8300-044, effective February 9, 2011.]

4-223. Order for free process.

[For use with Supreme Court General Rule 23-114 NMRA]

STATE OF NEW MEXICO

COUNTY OF _____

SIXTH JUDICIAL DISTRICT COURT

_____, Petitioner,

v.

No. D-_____ - _____ - _____

_____, Respondent.

ORDER ON APPLICATION FOR FREE PROCESS

THIS MATTER having come before the court on Petitioner's application for free process and affidavit of indigency, or upon Petitioner's attorney's certificate supporting indigency and free process pursuant to Rule 23-114(B)(2) NMRA, and the court being otherwise advised in the premises, **FINDS** that:

☐ the applicant is entitled to free process in accordance with Rule 23-114(B)(2) NMRA.

☐ the applicant receives public assistance and is, therefore, entitled to free process.

☐ the applicant's annual gross income does not exceed _____ of the federal poverty guidelines, and the applicant is, therefore, entitled to free process.

☐ the applicant's annual gross income exceeds _____ of the federal poverty guidelines, but the applicant is not reasonably able to pay fees or costs and is, therefore, entitled to free process.

☐ on the basis of the applicant's available funds or annual gross income, the applicant is not entitled to free process.

THE COURT ORDERS that:

☐ the filing fee is waived.

☐ the filing fee is waived except for the \$ _____ alternative dispute resolution (ADR) fee.

☐ the applicant is granted free service of process by the Sheriff in _____ County, New Mexico for 1 2 3 4 5 or _____ summons(es), provided that the applicant first attempts service by certified mail pursuant to Rule 1-004 NMRA.

☐ the applicant is granted free service by the Sheriff in _____ County, New Mexico, of a temporary restraining order or _____.

☐ the applicant is to pay the filing fee on _____, 20____.

☐ interpretation services shall be provided to the applicant.

☐ free process is denied.

☐ Other:

Unless specifically granted above, this order of free process does not include the following costs: jury fees, certification fees, subpoena fees for witnesses, witness fees for hearings or trials, mailings, long distance charges, transcripts for appeals or record proper, duplication fees for audiotapes or compact discs, copy charges, publication fees, or facsimile services. Application for all other costs are to be made to the judge assigned to your case. If the applicant prevails in this law suit and collects money by judgment or settlement, the court may order reimbursement for any waived costs. If the applicant is represented by an attorney who is paid an attorney fee, any fees or costs waived by this order must be deducted from any such attorney fee and paid to the court clerk. **This order is subject to revision, modification, or rescission by the judge assigned to your case.**

JUDGE

[Adopted by Supreme Court Order No. 07-8300-043, effective February 25, 2008; as amended by Supreme Court Order No. 08-8300-031, effective November 17, 2008; by Supreme Court Order No. 10-8300-044, effective February 9, 2011; as amended by Supreme Court Order No. 17-8300022, effective for all cases pending or filed on or after December 31, 2017.]